



POLICE DEPARTMENT

August 6, 2024

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In the Matter of the Charges and Specifications :

- against - :

Police Officer Joshua Ganshaw :
Tax Registry No. 966072 :
75 Precinct :

Case No. 2022-26847

Police Officer Adam Pawelic :
Tax Registry No. 966766 :
75 Precinct :

Case No. 2022-26848
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At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Jeff S. Adler
Assistant Deputy Commissioner Trials

APPEARANCES:

For the CCRB-APU:

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Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

For the Respondents:

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To:

HONORABLE EDWARD A. CABAN
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

CHARGES AND SPECIFICATIONS

Disciplinary Case No. 2022-26847

1. Police Officer Joshua Ganshaw, on or about May 22, 2021, at approximately 1145 hours, while assigned to the 075 PCT and on duty, in the vicinity of New Jersey Avenue and New Lots Avenue, Kings County, wrongfully used force, in that he pointed his gun at [the complainant] without police necessity.

P.G. 221-02, Page 2, Paragraph 11

USE OF FORCE

2. Police Officer Joshua Ganshaw, on or about May 22, 2021, at approximately 1145 hours, while assigned to the 075 PCT and on duty, in the vicinity of New Jersey Avenue and New Lots Avenue, Kings County, abused his authority as a member of the New York City Police Department, in that he frisked [the complainant] without sufficient legal authority.

P.G. 212-11, Page 8, Paragraph 36

INVESTIGATIVE
ENCOUNTERS

3. Police Officer Joshua Ganshaw, on or about May 22, 2021, at approximately 1145 hours, while assigned to the 075 PCT and on duty, in the vicinity of New Jersey Avenue and New Lots Avenue, Kings County, abused his authority as a member of the New York City Police Department, in that he searched [the complainant's] person without sufficient legal authority.

P.G. 212-11, Page 8, Paragraph 40

INVESTIGATIVE
ENCOUNTERS

4. Police Officer Joshua Ganshaw, on or about May 22, 2021, at approximately 1145 hours, while assigned to the 075 PCT and on duty, in the vicinity of New Jersey Avenue and New Lots Avenue, Kings County, abused his authority as a member of the New York City Police Department, in that he conducted a search of the vehicle in which [the complainant] was an occupant without sufficient legal authority.

P.G. 212-11, Page 8, Paragraph 40

INVESTIGATIVE
ENCOUNTERS

Disciplinary Case No. 2022-26848

1. Police Officer Adam Pawelic, on or about May 22, 2021, at approximately 1145 hours, while assigned to the 075 PCT and on duty, in the vicinity of New Jersey Avenue and New Lots Avenue, Kings County, wrongfully used force, in that he pointed his gun at [the complainant] without police necessity.

P.G. 221-02, Page 2, Paragraph 11

USE OF FORCE

REPORT AND RECOMMENDATION

The above-named members of the Department appeared before me on June 27, 2024. Respondents, through their counsel, entered pleas of Not Guilty to the subject charges. The CCRB introduced into evidence the hearsay statement of the complainant, as well as the Body-Worn Camera (“BWC”) videos of each Respondent. Respondents testified on their own behalves. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner’s review. Having evaluated all of the evidence in this matter, I find as follows:

Respondent Pawelic:

Specification 1 (wrongfully pointing firearm): Not Guilty

Respondent Ganshaw:

Specification 1 (wrongfully pointing firearm): Not Guilty

Specification 2 (frisk): Not Guilty

Specification 3 (search of person): Guilty

Specification 4 (search of vehicle): Guilty

Recommended penalty for Respondent Ganshaw: Training

ANALYSIS

At approximately 1145 hours on May 22, 2021, Respondents were on patrol in Kings County when they received a radio call for an automobile larceny in progress a few blocks away. The call included a description of the vehicle: a white Lincoln MKX with an out-of-state license plate. Moments later, Respondents stopped an off-white Lincoln MKX with a New Jersey plate

near the intersection of New Jersey Avenue and New Lots Avenue. Although it turned out that the operator of the vehicle (“the complainant”) was the lawful owner, the parties are in agreement that the act of stopping the car was lawful. It is alleged, however, that during the course of the stop, both Respondents wrongfully pointed their firearms at the complainant. Additionally, Respondent Ganshaw faces charges for conducting an improper frisk and search of the complainant, and for searching his vehicle without sufficient legal authority.

The complainant did not appear to testify. Instead, the CCRB offered into evidence the transcript of a phone interview conducted by the CCRB on June 7, 2021. (CCRB Ex. 1) It is well-settled that hearsay evidence is admissible in administrative proceedings, and may form the sole basis for a finding of fact. The hearsay, however, must be carefully evaluated to determine whether it is sufficiently reliable. It is preferable to have testimony from a live witness, where opposing counsel has the opportunity to cross examine, and the court can observe witness demeanor. In the absence of live testimony from the complainant here, this tribunal carefully considered his prior statement, in conjunction with the other evidence presented, including the video footage.

In his statement, the complainant stated that he was driving his 2008 Lincoln MKX, which he described as having a tan, milk-like color, when police pulled him over. Multiple police officers “swarmed” the complainant, with their guns drawn and pointed at him. The complainant, who had done nothing wrong, was “kind of like in a shock.” The officers yelled for him to exit his vehicle and he complied. They informed him that they had a report of a stolen car, but the complainant told them that it was his car and he had the title. One of the officers patted him down and removed his wallet, which contained his driver’s license. They asked if they could search inside the vehicle in order to retrieve the registration, and the complainant

consented. The officers confirmed that the complainant was the owner, handed him a business card, and departed. (CCRB Ex. 1 at 5-11, 14, 17, 20-24, 28)

The encounter between Respondents and the complainant during the car stop was captured by the Body-Worn Cameras (“BWC”) of Respondents. In that footage (CCRB Exs. 2 & 3), Ganshaw can be seen emerging from the RMP, and he immediately points his firearm at the driver’s side window of the Lincoln, shouting, “Put the car in park.” Pawelic also exits the RMP, positions himself in front of the Lincoln, and points his firearm at the windshield. Ganshaw opens the driver’s door, and the complainant, the sole occupant, raises his hands in the air. A sergeant on the scene reaches through the front passenger door and removes the complainant’s seatbelt, as Ganshaw lowers his firearm, approximately 20 seconds after he first raised it, and Pawelic appears to lower his as well. The sergeant asks where he got the car, and the complainant answers, “It’s my car.” The sergeant tells him that there was a report of a stolen car in the area. The complainant steps out of the car.

Once the complainant is outside the vehicle, the video shows Ganshaw patting him down. He asks the complainant if he can go inside his pocket to get his ID, and the complainant says yes. After he does so, Ganshaw also asks if he can go in the glove compartment to retrieve the registration, and the complainant tells him yes to that as well. Ganshaw leans into the car and removes the registration, which he compares to the complainant’s driver’s license to verify that the complainant is the owner. The sergeant and Respondents again explain to the complainant why he was stopped, and Pawelic hands him a business card with the names of the officers. The officers and the complainant exchange fist bumps, and the encounter concludes.

Respondent Ganshaw testified that he and Respondent Pawelic were on patrol in their RMP when they heard a radio run for a stolen vehicle in progress. The vehicle was last seen on

Livonia Avenue and New Jersey Avenue. There was no indication from the call whether any weapons were involved. Near Livonia and New Jersey, they observed a Lincoln MKX that matched the description they had just received, and Ganshaw was convinced that this was the vehicle in question. He activated his lights and sirens in order to pull the Lincoln over, but the vehicle did not immediately stop. Ganshaw testified that he drove past the Lincoln and blocked it with his RMP, and the vehicle came to a stop near the intersection of New Jersey Avenue and New Lots Avenue. The driver's side window of the Lincoln was tinted, and Ganshaw could not see inside. He exited his RMP and pointed his firearm at the driver's window, while yelling to the operator to put the car in park. Ganshaw opened the driver's door and observed the complainant in the driver's seat. Since there no longer was an immediate threat to life, he holstered his firearm and had the complainant exit the vehicle. (Tr. 24-32, 37-38, 46)

According to Ganshaw, his decision to point his firearm was consistent with his training, which emphasized that during a felony car stop for a stolen vehicle, an officer's gun needs to be drawn and pointed at the threat area, until the threat is mitigated or determined not to be a threat. He acknowledged, however, that he was also instructed at the Academy that an officer must use professional judgment in determining whether to draw their weapon. (Tr. 28-29, 39, 42-45)

After the complainant was outside the Lincoln, Ganshaw conducted a frisk, patting him down to make sure there were no weapons. Ganshaw conceded that he did not observe any weapons or suspicious bulges before conducting the frisk, but explained that they needed to make sure there were no weapons present while they investigated this major felony crime with a high potential for violence. He then asked for the complainant's driver's license; the license was inside the complainant's wallet, which the complainant allowed Ganshaw to retrieve from his pants pocket. Based on the complainant's "demeanor and his level of cooperation," Ganshaw

believed that he might be the rightful owner of the Lincoln. He asked if he could go inside the glovebox to get the registration, and the complainant consented. Ganshaw testified that he did not tell the complainant that he had a right not to consent. Once Ganshaw confirmed that the vehicle was not stolen, the officers again explained to the complainant the reason for the stop and left the location. (Tr. 32-35, 47-53)

Respondent Pawelic testified that the Lincoln's front windshield was dark. Since he could not see who was inside the vehicle or whether they posed any threat, he drew his firearm and pointed it toward the windshield, providing cover for his colleagues. Once he saw that the situation was under control, Pawelic lowered his firearm to the ready position and eventually holstered it. After it was determined that the Lincoln was not stolen, Pawelic explained to the complainant why he had been stopped, offered him a business card, and departed the location. (Tr. 62-70)

Pawelic acknowledged that he was instructed to use his professional judgment regarding when to draw his weapon. Like Ganshaw, Pawelic also testified that during a training workshop that involved several felony car stop scenarios, the instructors were "adamant" about the officers having their guns out. Pawelic stated that he utilized that training, as well as his experience making car stops, when he decided to draw and point his firearm during this incident. He testified that he continued to point his firearm until there no longer was a threat that the complainant could reach into a concealed area and pull a weapon. However, when he was interviewed by the CCRB sometime after the incident, the only reason Pawelic provided for why he drew his weapon was because they were dealing with a car theft, and he was concerned that the vehicle might be used as a weapon. (Tr. 58-61, 70-72)

Specification 1 against each Respondent alleges that they wrongfully pointed their guns at the complainant without police necessity. It is undisputed that after exiting their RMP, both Respondents did point their firearms in the direction of the complainant. At issue is whether such conduct was reasonable under the circumstances. Section 221-01 of the Patrol Guide notes, "Drawing a firearm prematurely or unnecessarily limits a uniformed member of the service's options in controlling a situation and may result in an unwarranted or accidental discharge of the firearm. The decision to display or draw a firearm should be based on an articulable belief that the potential for serious physical injury is present."

After reviewing all of the evidence presented, I credit Respondents' testimony that they genuinely believed that the car they stopped was the one referenced in the radio run. Ganshaw, a "car enthusiast," was able to recognize that the vehicle they stopped had the distinct markings of a Lincoln MKX, and that it matched the description of the stolen car as to make, model and color, as well as having an out-of-state plate. Indeed, both sides agree that it was lawful for Respondents to conduct this felony car stop.

Additionally, both Respondents testified about their workshop training, which emphasized the need to draw their firearms during the stolen car stop scenarios they participated in. However, they also acknowledged that they were trained at the Academy regarding the importance of using their professional judgment in each situation to determine whether it is appropriate to draw their firearm. Although drawing one's weapon may be reasonable in certain stolen car stop scenarios, that does not relieve a UMOS of the responsibility to assess the circumstances of each individual situation in order to determine whether it is appropriate to draw their firearm.

Under the totality of the specific circumstances presented here, it was not unreasonable for Respondents to briefly draw their firearms and point them at the complainant. The officers were responding to a 911 call for a car larceny in progress, just a few blocks away. Although they did not have any information that a weapon was used in stealing the car, the officers were making a stop for a major felony offense that had just occurred. When they initially attempted to pull over the Lincoln, the complainant did not immediately comply, leading Ganshaw to believe that the motorist intended to drive off from the police. After positioning their RMP in front of the vehicle, the officers emerged and observed that the Lincoln had tinted side windows, and the windshield was dark as well, restricting their ability to see inside the vehicle. Indeed, the officers were not even sure how many occupants were in the Lincoln. They could not initially see the complainant's hands, or whether he or any any occupant was reaching for a weapon. They also could not be sure that the motorist would not attempt to drive off in the Lincoln and use it as potential weapon.

In this context, it was reasonable for Respondents to draw and point their firearms until they were able to secure the situation and assure themselves that the potential for serious physical injury was no longer present. Once that occurred, they both lowered their firearms, and proceeded with their investigation. As such, the record has failed to establish, by a preponderance of the credible evidence, that Respondents wrongfully pointed their firearms at the complainant. Accordingly, I find both Respondents Not Guilty of Specification 1.

Respondent Ganshaw faces three additional charges. Specification 2 alleges that he frisked the complainant without sufficient legal authority. It is undisputed that after the complainant was removed from the Lincoln, Ganshaw conducted a brief frisk, which was captured in the video footage. Section 212-11 (36) of the Patrol Guide states that if an officer

develops a reasonable suspicion that a person is armed and dangerous, the officer may frisk the person for a deadly weapon.

As discussed above, the stop was conducted in response to a 911 call for a larceny in progress that had just come over the radio. When Ganshaw attempted to pull the Lincoln over, the complainant did not comply, forcing the officer to use his RMP to block the Lincoln. The officers could not initially see what the complainant was doing with his hands inside the Lincoln due to the dark and tinted windows.

As such, at the time of the frisk, Ganshaw reasonably believed that the complainant had just committed a major felony offense, and had attempted to elude the police. Because of the tint and dark windows, the officers were unable to see what the complainant was doing inside the vehicle before he was removed, and they had a reasonable concern for their safety. Although Ganshaw did not observe any weapons or suspicious bulges on the complainant, it was not unreasonable for him to conduct a brief, minimally intrusive pat down for his safety and all involved, in order to allow them to safely proceed with their investigation. The record has failed to prove, by a preponderance of the credible evidence, that Ganshaw wrongfully frisked the complainant. Accordingly, I find him Not Guilty of Specification 2.

Specification 3 charges Ganshaw with wrongfully searching the person of the complainant's person, while Specification 4 alleges that he wrongfully searched the complainant's vehicle without sufficient legal authority. It is undisputed that Ganshaw reached into the complainant's pants pocket and removed his wallet, from which he retrieved the complainant's driver's license. It also is uncontested that Ganshaw leaned into the car to remove the registration from the glove compartment. At issue is whether Ganshaw properly obtained voluntary consent before conducting the searches.

The defense argues that the complainant verbally consented to both searches, and therefore they were proper. Indeed, the video footage shows that Ganshaw did ask the complainant's permission before each search, and the complainant readily agreed. However, Section 212-11 of the Patrol Guide requires an officer to do more when asking for consent: "When seeking consent, make clear that the search will not occur if the person does not consent. For example, in a non-threatening manner and without making promises, you may ask the following: *'I can only search you, if you consent. Do you understand? May I search you?'*"

At the time of the searches, the complainant was behaving in a cooperative manner toward the officers. There were no exigent circumstances preventing Ganshaw from explaining to the complainant that no search would occur if he refused his consent. Since Ganshaw failed to do so, the complainant's permission to search was not fully informed. Accordingly, I find Ganshaw Guilty of Specifications 3 and 4.

PENALTY

In order to determine an appropriate penalty, this Tribunal, guided by the Department's Disciplinary System Penalty Guidelines, considered all relevant facts and circumstances, including potential aggravating and mitigating factors established in the record. Respondent Ganshaw's employment history also was examined. See 38 RCNY § 15-07. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached memorandum.

Respondent Ganshaw, who was appointed to the Department on July 2, 2018, has been found Guilty of wrongfully searching the complainant and his vehicle without obtaining proper consent. The presumptive penalty for the improper searches is three days, and the mitigated

penalty is training. The CCRB recommends the presumptive penalty of three vacation days for each offense, to run concurrently with each other.

Ganshaw has no formal disciplinary record, and has been awarded multiple medals in recognition of his police work. The two counts for which he has been found guilty involve his interaction with the complainant after he was removed from the vehicle. The Disciplinary Guidelines articulate several mitigating factors that are relevant here on the issue of penalty for these offenses. Ganshaw's actions were brief and minimally intrusive. The search of the complainant's person involved removing his wallet to see his ID. Similarly, Ganshaw did not conduct an extensive search of the car looking for evidence of criminality; rather, he merely retrieved the registration from the glove compartment to verify ownership of the Lincoln.

Moreover, Ganshaw did ask for the complainant's permission before conducting these limited searches. To be sure, his failure to advise the complainant that he could refuse permission to search was a procedural error, but it did not appear to be a deliberate effort on Ganshaw's part to violate the complainant's rights. Rather, the goal was to investigate and determine as quickly as possible whether the complainant had committed a crime; when it was determined that he had not, he was promptly released within a couple of minutes.

Indeed, the mistakes here appear to be correctable through training. Taking into account the totality of the facts and circumstances in this matter, including Ganshaw's strong record with the Department, I recommend that Respondent Ganshaw receive training, a productive penalty that will hopefully prevent similar misconduct in the future.

APPROVED

AUG 23 2024
Edward A. Caban
EDWARD A. CABAN
POLICE COMMISSIONER

Respectfully submitted,


Jeff S. Adler
Assistant Deputy Commissioner Trials



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ARVA RICE
INTERIM CHAIR

August 5, 2024

Honorable Edward A. Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: Police Officers Joshua Ganshaw & Adam Pawelic
Disciplinary Case Nos. 2022-26847 & 2022-26848

Commissioner Caban:

The above-referenced case was tried on June 27, 2024, by the undersigned, for the New York City Civilian Complaint Review Board (hereinafter "CCRB"), pursuant to the Memorandum of Understanding between the CCRB and the New York City Police Department.

CCRB has reviewed the draft decision of Assistant Deputy Commissioner of Trials ("ADCT"), Jeff S. Adler, dated July 26, 2024. I respectfully submit the following comments regarding that draft decision pursuant to *Fogel v. Board of Education*, 48 A.D.2d 925 (2d Dept. 1975).

Respondent, Police Officer Joshua Ganshaw was charged with the following:

1. Police Officer Joshua Ganshaw, on or about May 22, 2021, at approximately 1145 hours, while assigned to the 075 PCT and on duty, in the vicinity of New Jersey Avenue and New Lots Avenue, Kings County, wrongfully used force, in that he pointed his gun at § 87(2)(b) without police necessity.

P.G. 221-02, Page 2, Paragraph 11 USE OF FORCE

2. Police Officer Joshua Ganshaw, on or about May 22, 2021, at approximately 1145 hours, while assigned to the 075 PCT and on duty, in the vicinity of New Jersey Avenue and New Lots Avenue, Kings County, abused his authority as a member of the New York City Police Department, in that he frisked § 87(2)(b) without sufficient legal authority.

P.G. 212-11, Page 8, Paragraph 36 INVESTIGATIVE ENCOUNTERS

3. Police Officer Joshua Ganshaw, on or about May 22, 2021, at approximately 1145 hours while assigned to the 075 PCT and on duty, in the vicinity of New Jersey Avenue and New Lots Avenue, Kings County, abused his authority as a member of the New York City Police Department, in that he searched § 87(2)(b) person without sufficient legal authority.

P.G. 212-11, Page 8, Paragraph 40 INVESTIGATIVE ENCOUNTERS

4. Police Officer Joshua Ganshaw, on or about May 22, 2021, at approximately 1145 hours, while assigned to the 075 PCT and on duty, in the vicinity of New Jersey Avenue and New Lots Avenue, Kings County, abused his authority as a member of the New York City Police Department, in that he conducted a search of the vehicle in which § 87(2)(b) was an occupant without sufficient legal authority.

P.G. 212-11, Page 8, Paragraph 40 INVESTIGATIVE ENCOUNTERS

The Court found Respondent Ganshaw not guilty of Specifications One (1) and Two (2) and guilty of Specifications Three (3) and Four (4).

It is respectfully requested that you reject ADCT Adler's findings and find Respondent Ganshaw guilty of both Specifications One (1) and Two (2) and accept CCRB's recommended penalty of THIRTY (30) suspension days plus THIRTY (30) penalty days plus dismissal probation.

Respondent, Police Officer Adam Pawelic was charged with the following:

1. Police Officer Adam Pawelic, on or about May 22, 2021, at approximately 1145 hours, while assigned to the 075 PCT and on duty, in the vicinity of New Jersey Avenue and New Lots Avenue, Kings County, wrongfully used force, in that he pointed his gun at § 87(2)(b) without police necessity.

P.G. 221-02, Page 2, Paragraph 11 USE OF FORCE

The Court found Respondent Pawelic not guilty of Specifications One (1).

It is respectfully requested that you reject ADCT Adler's findings and find the Respondent Pawelic guilty of Specifications One (1) and accept CCRB's recommended penalty of THIRTY (30) suspension days plus THIRTY (30) penalty days plus dismissal probation.

SUMMARY OF THE RELEVANT EVIDENCE AT TRIAL

The relevant evidence introduced at trial by CCRB were CCRB Exhibits 1, the complaining witness, § 87(2)(b) transcript; Exhibit 2, Respondent Ganshaw's BWC footage; and Exhibit 3, Respondent Pawelic's BWC footage.

In his transcript, § 87(2)(b) stated that he was heading home when he was stopped at a red light at the intersection of New Jersey and New Lots Avenues, when a police car pulled up behind him, and put on the lights. It was just flashing lights, no sirens or announcements, so he tried to move out of their way. He thought the police car was trying to get around him, because there was not enough space for the police car to maneuver around him and was not trying to drive

away from them. He stated that he was then swarmed by multiple police officers with their guns drawn. (CCRB Ex. 1 pg. 6). Prior to stopping at the intersection, § 87(2)(b) stated he did not commit any traffic violations or speeding and obeyed all traffic laws. (CCRB Ex. 1 pg. 11). § 87(2)(b) stated the guns were pointed at him. He stated the officers were yelling at him, but he could not comprehend what they were saying to him because he was scared and did not understand why he was stopped. His main concern was the guns pointed at him. (CCRB Ex. 1 pg. 17). One of the officers opened his door for him to get out, and upon getting out of his car he was patted down. He stated that he was complying with everything they were saying as he did not want to get shot or die that day. He was escorted to the back of his vehicle and had to place his hands on the car and the officer then searched him. (CCRB Ex. 1 pg. 20). § 87(2)(b) stated that they then searched the glove compartment of his car for his registration. He consented to both searches because he wanted to comply with everything and not fight about it. (CCRB Ex. 1 pg. 23, 24). He was also concerned that if he did not consent to the searches, then the officers may plant something so he can get arrested. (CCRB Ex. 1 pg. 26). After the searches were completed, the officers told § 87(2)(b) he was allowed to leave, and PO Pawelic gave him his business card. (CCRB Ex. 1 pg. 28).

In Exhibit 2, Respondent Ganshaw's BWC footage at 0:55 – 1:00 shows him coming out of police car and immediately draws and points his gun directly at § 87(2)(b). At 1:08 he shouts out orders "put car in park" – twice. Another police officer comes up the rear of § 87(2)(b) car with his gun drawn. At 1:12-1:19, Respondent Ganshaw opens the driver's side door and § 87(2)(b) is seen seat belted in with hands up in the air. Respondent Ganshaw orders § 87(2)(b) "Don't reach for anything. Keep your hands in the air." No weapons or bulges are seen in the car or on § 87(2)(b). At 1:19 – 1:25 a Sergeant who was present and standing at the passenger side opens the door and reaches in to take seat belt off § 87(2)(b). There are no weapons, bulges seen, and there are no safety concerns. Respondent Ganshaw has his gun pointing down towards the ground. § 87(2)(b) has his hands up – compliant – as the Sergeant is talking to him. At 1:31- 1:35, Respondent Ganshaw, with his hand on § 87(2)(b) escorts him out of the car. § 87(2)(b) is wearing sweatpants and a T-shirt. There are no weapons or bulges indicating any weapons on § 87(2)(b). At 1:41 –1:48, Respondent frisks § 87(2)(b). At 1:49 1:53, Respondent Ganshaw, with regard to § 87(2)(b) ID, states "I can go into your pocket and get it, right?" § 87(2)(b) consents. At 1:54 – 2:13, Respondent Ganshaw states, "Do you have registration for the vehicle?" § 87(2)(b) responds, "Yes. it's in the glove compartment -want me to get it." Respondent Ganshaw responds "Just tell me where it is, ok!!" and "I can go into the car and get it?" To which § 87(2)(b) responds, "yes." At 2:13-2:34, with § 87(2)(b) wallet in one hand, Respondent Ganshaw is seen rifling through the glove compartment of § 87(2)(b) car and finds the registration. Respondent Ganshaw then goes through § 87(2)(b) wallet, pulls out his ID, and compares it to the registration.

In Exhibit 3, at 10 – 17, Respondent Pawelic comes out of the car with his gun drawn in his right hand and his radio in his left hand and points his gun at the front windshield of § 87(2)(b) car. At 23-37, § 87(2)(b) is seen through the front windshield with hands up and seat belted in his car. The driver's side door is not open yet and the Sergeant is seen going into § 87(2)(b) car. § 87(2)(b) hands are still up in the air as the Sergeant enters the car and unbuckles the seat belt. As the Sergeant is doing this, § 87(2)(b) hands are still in the air, and Respondent Pawelic is still pointing his gun at § 87(2)(b) exits the car and Respondent Pawelic puts his gun down.

SUMMARY OF RESPONDENT GANSHAW'S TESTIMONY

On his direct examination, Respondent Ganshaw stated that he pointed his firearm at the driver's window on the vehicle and instructed the driver to put the vehicle in park. He then proceeded to the driver's door of the vehicle with his gun still drawn. (Transcript 30). He then stated that when he opened the vehicle's door he saw § 87(2)(b) sitting in the driver's seat and he had his seatbelt on, and his left hand coming out of the vehicle. He saw only § 87(2)(b) in the vehicle. (Transcript 31). Respondent Ganshaw testified that once he saw § 87(2)(b) hands and no one else in the vehicle he holstered his gun. (Transcript 31,32). He further testified that as per his training, once he realized that there no longer was an immediate life threat in front of him and the other officers present, he holstered his gun so as to take that out of the equation. (Transcript 32). Respondent Ganshaw then stated that he asked § 87(2)(b) to get out of the car, and then conducted a pat-down frisk of § 87(2)(b). He also stated he did not handcuff § 87(2)(b) (Transcript, *Id.*). Respondent Ganshaw testified that after he frisked § 87(2)(b) he directed him to the rear of his car, and based on § 87(2)(b) demeanor and level of cooperation it occurred to Respondent Ganshaw that § 87(2)(b) was the owner of the car. (Transcript 33). Respondent Ganshaw testified that upon securing § 87(2)(b) wallet for his ID, and his car registration from the car's glove compartment, he compared the two documents and realized the vehicle did in fact belong to § 87(2)(b) (Transcript 33, 34, 35). Respondent Ganshaw stated that the officers who were present then explained to § 87(2)(b) the reason for stopping him and they concluded interaction with § 87(2)(b) and they all left the area. (Transcript 35).

On cross-examination, Respondent Ganshaw testified that when they received the radio run regarding a car being stolen, there was no information as to how the car was stolen. (Transcript 36). He stated that there was nothing reported about weapons being used in this car theft. There was no license plate information reported. Respondent Ganshaw also testified that neither he nor Respondent Pawelic radioed back to get more details on the stolen car. (Transcript 37). He stated that in stopping § 87(2)(b) car he only activated the turret lights and siren to try and pull § 87(2)(b) car over. Respondent Ganshaw testified that he did not use the police vehicle's speaker system and order § 87(2)(b) to pull his car over. (Transcript 38). Respondent Ganshaw testified that prior to pulling § 87(2)(b) car over he did not see § 87(2)(b) commit any traffic violations, moving violations or anything illegal. (Transcript, *Id.*). He stated that upon exiting the police vehicle that he still did not have any information regarding weapons being used in the car theft. (Transcript 39). Respondent Ganshaw then admitted in his testimony that his training taught him to use his professional judgement and not necessarily pull his gun for all felony car stops (Transcript 45). He then stated that he did not have any specific reason to believe that there were weapons involved in this car theft. (Transcript 46). Respondent Ganshaw then stated that upon opening the door where § 87(2)(b) was sitting, he saw that § 87(2)(b) was seat-belted, and had both his hands up in the air. He also stated that § 87(2)(b) was compliant. (Transcript, *Id.*). Respondent Ganshaw testified that no one informed § 87(2)(b) why there were guns being pointed at him. (Transcript 47). Respondent Ganshaw stated that he did not see any weapons, bulges when the car door was open or during the time period the Sergeant present, went into § 87(2)(b) car to unseat belt him. He also stated that he did not see any weapons in the car. (Transcript 48). Respondent Ganshaw testified that when § 87(2)(b) was coming out of his car, Respondent Ganshaw holstered his gun, and did not see any weapons or bulges on § 87(2)(b) (Transcript *Id.*). Respondent Ganshaw stated that before he frisked § 87(2)(b) he did not see any bulges or weapons on him. He stated that

before frisking § 87(2)(b) he did not ask his permission, and that § 87(2)(b) did not voluntarily consent to the frisk. (Transcript 49). Respondent Ganshaw clarified that even though § 87(2)(b) was not handcuffed, he was still surrounded by several police officers. (Transcript 50). Respondent Ganshaw testified that after comparing § 87(2)(b) license ID to his registration, and seeing it was § 87(2)(b) car, he explained what happened. He stated that throughout the entire incident § 87(2)(b) was compliant and a gentleman. (Transcript 53).

SUMMARY OF RESPONDENT PAWELIC'S TESTIMONY

On his direct examination, Respondent Pawelic testified that in his training he was taught to use professional judgement when drawing his gun during felony car stops. (Transcript 61). He stated that when he got out of the police vehicle, he pointed his gun in the general direction of the front windshield of § 87(2)(b) car. He testified that while he had his gun drawn and pointing at the front windshield of § 87(2)(b) car, he was also watching the interaction between Respondent Ganshaw and § 87(2)(b) (Transcript 63). Respondent Pawelic stated that he eventually holstered his gun and then went to the rear of § 87(2)(b) car. (Transcript 64). He stated that after he explained to § 87(2)(b) the reason for the stop, he offered him his business card. Respondent Pawelic testified that § 87(2)(b) was a gentleman and compliant during the whole interaction. (Transcript 65).

On cross examination, Respondent Pawelic testified that there was no information in the radio run regarding the car theft as how the car was stolen, if the license plates were switched, or if any weapons were involved. (Transcript 66). He testified that when he saw the Sergeant enter the passenger side of § 87(2)(b) car and unseat belt him, that he still had his gun pointed towards the front windshield. (Transcript 69). Respondent Pawelic testified that despite the fact his BWC footage showed that as he approached § 87(2)(b) car, § 87(2)(b) had both of his hands up in the air, he stated "I can only say what I recall." (Transcript 69). Respondent Pawelic testified that he never saw § 87(2)(b) have any weapons whether on him or in his vehicle. (Transcript 73).

RESPONDENTS GANSHAW AND PAWELIC ARE GUILTY OF POINTING THEIR GUNS AT § 87(2)(b) WITHOUT POLICE NECESSITY

CCRB disagrees with the Tribunal's finding that it was not unreasonable for the Respondents to briefly draw their firearms and point them at § 87(2)(b) (Draft Decision 9).

The evidence showed that the Respondents were not justified in pointing their guns at § 87(2)(b). The Respondents did not receive any information about the nature in which the vehicle was stolen or if there were any weapons involved during the crime. Neither Respondent made any observation nor received any indication that § 87(2)(b) was armed with a weapon. Neither Respondent could provide a specific articulable reason for which they feared for their own or anyone else's safety or believed there was an immediate threat of serious physical injury occurring.

The evidence also showed that the training both Respondents received in the academy regarding known risk vehicle stops did not specify that they need to point their guns at the threat during every known risk vehicle stop and must use their professional judgement in determining whether to do so.

Furthermore, the evidence showed Respondents both continued to point their guns at § 87(2)(b) for eight and twelve seconds respectively after § 87(2)(b) raised his hands above his head in clear view. This amount of time was clearly not brief, nor was it reasonable.

As such, the Respondents are guilty of pointing their guns at § 87(2)(b) without police necessity.

RESPONDENT GANSHAW IS GUILTY OF FRISKING § 87(2)(b)
WITHOUT SUFFICIENT LEGAL AUTHORITY

CCRB disagrees with the Tribunal's finding that it was not unreasonable for the Respondent to conduct a frisk of § 87(2)(b) (Draft Decision 10).

The evidence showed that upon opening the driver's door and observing § 87(2)(b) seat belted in the driver's seat, with his hands up, Respondent holstered his firearm as there no longer was an immediate threat to anyone. Respondent also admitted that he did not observe any weapons or suspicious bulges on § 87(2)(b) when he exited the car, or any time before he conducted the frisk. Accordingly, Respondent did not have sufficient reason to believe that § 87(2)(b) was armed with a weapon. Thus, he was not justified in frisking § 87(2)(b).

As such, Respondent is guilty of frisking § 87(2)(b) without sufficient legal authority.

THE PENALTY FOR RESPONDENT GANSHAW'S VIOLATION OF PG 212-11, PAGE 8, PARA 36 INVESTIGATIVE ENCOUNTERS AND VIOLATION OF PG 212-11, PAGE 8, PARA 40 INVESTIGATIVE ENCOUNTERS SHOULD BE THE PRESUMPTIVE PENALTY OF THREE (3) DAYS FOR EACH VIOLATION TO RUN CONSECUTIVELY

Respondent was found guilty of wrongfully searching § 87(2)(b) person without sufficient legal authority, and for wrongfully searching his car without sufficient legal authority, as Respondent failed to obtain voluntary consent before conducting both searches. The Tribunal's recommendation of the mitigated penalty of Training for Specifications 3 and 4 is too lenient. Based on Respondent's misconduct, his six (6) years as a Member of Service, and the academy training he received, he should have been aware that the searches he conducted in the herein matter were in clear violation of New York City Administrative Code 14-173, and NYPD Patrol Guide Procedure 212-11, as well as § 87(2)(b) 4th Amendment rights. As such, Respondent should receive the presumptive penalty—forfeiture of Three (3) vacation days for Specification 3 and 4 as requested by CCRB. There are no mitigating factors that would justify a penalty of Training.

The Tribunal stated that at the time of the searches, § 87(2)(b) was behaving in a cooperative manner towards the officers. There were no exigent circumstances preventing Respondent from explaining to § 87(2)(b) that no search would occur if he refused his consent. Since Respondent failed to do so, § 87(2)(b) permission to search was not fully informed. (Draft Decision 11). Respondent's disregard for the rules of the Patrol Guide and Department policy warrants the imposition of the presumptive penalty of forfeiture of 3 vacation days for Specification 3 and Specification 4 to run consecutive.

CONCLUSION

For all the aforementioned reasons, CCRB asks you to carefully review the evidence, which strongly supports a finding of guilt on Specification 1 and Specification 2 for Police Officer Joshua Ganshaw, and CCRB recommends the penalty of forfeiture of THIRTY (30) suspension days plus THIRTY (30) penalty days plus dismissal probation.

CCRB requests that you accept ADCT Adler's findings for Specifications 3 and 4 against Police Officer Ganshaw, but that you reject the Tribunal's recommendation of Training and impose CCRB's penalty recommendation of forfeiture of 3 vacation days for each specification to run consecutive.

With regards to Police Officer Adam Pawelic, CCRB asks you to carefully review the evidence, which strongly supports a finding of guilt on charged Specification 1, and CCRB recommends the penalty of forfeiture of THIRTY (30) suspension days plus THIRTY (30) penalty days plus dismissal probation.

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Respectfully submitted,

Fredy H. Kaplan

Fredy H. Kaplan

Prosecutor

Administrative Prosecution Unit

Civilian Complaint Review Board

Cc: Craig Hayes, Esq.